

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABIGAIL ALCALA,

Petitioner

VS.

SALVADOR ALCALA,

Respondent

) Case Number: FDI-23-798607

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

WHETHER THE COURT SHOULD APPOINT EVIDENCE CODE NICK TARLSON AS EVIDENCE
CODE SECTION 730 EXPERT TO CALCULATE OVERALL ASSETS / DEBT DIVISION AND
EQUALIZATION AND HOW HIS FEES SHOULD BE PAID

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Abigail Alcala (Wife) and Respondent Salvador Alcala (Husband). The parties married on 6/29/1967. In Wife's Petition for Dissolution and Husband's Response and Request for Dissolution, both parties listed 5/5/2023 as their date of separation, for a marriage of 55 years and 11 months. The parties have no minor children in common. Wife is represented by attorney Jane Migachyov. Husband is represented by attorney Jeremy Castro (who substituted into this case on 3/9/2026).
- 2) At the prior 11/25/2025 hearing, the Court partially adjudicated Wife's unopposed Request for Order filed 9/16/2025. The Court:
 - a. Noted that Husband had been served by mail at the address Husband's former attorney listed for Husband (i.e., 226 Goldfinch Way Livermore, CA 94551) in the Amended Substitution of Attorney filed 6/3/2025.

- b. Adopted Wife's guideline temporary spousal support calculation and ordered Husband to pay \$4,650 per month in temporary spousal support effective 9/16/2025;
 - c. Ordered Husband to pay \$11,470 in temporary spousal support arrears for the period 9/16/2025 – 11/30/2025.
 - d. Awarded Wife \$111,162.80 in need-based attorney's fees and costs under Family Code section 2030 for fees incurred to date and for fees incurred through entry of Judgment and ordered Husband to pay this amount to Wife no later than 1/31/2026;
 - e. Ordered Husband to serve his full and complete Preliminary Declaration of Disclosure no later than 12/31/2025;
 - f. Ordered Husband to pay \$623.09 in attorney's fees sanctions under Family Code section 2107(c) and \$10,000 in attorney's fees sanctions under Family Code section 271, to be paid no later than 12/31/2025;
 - g. Reserved jurisdiction over Wife's request for the Court to award her 100% of various assets that Wife claims Husband misappropriated under Family Code section 1101(h);
 - h. Ordered Husband to transfer \$50,000 from community bank accounts to Wife no later than 12/31/2025;
 - i. Set a future hearing date of Tuesday, 1/27/2026 at 9:00 AM in Dept. 404 on Wife's request for the Court to appoint Evidence Code section 730 experts to trace funds Husband may have misappropriated, value the parties' properties, and conduct a business valuation of the parties' cattle ranching business in Mexico.
 - j. Ordered Wife to file and serve a declaration identifying which individuals she would like this Court to appoint as experts in this matter, their hourly rate, and their estimate for how much they believe they will incur to perform the requested tasks. Wife was also ordered to outline what qualifications and experience she believes renders the expert appropriate for appointment, and how she believes the cost of the experts should be allocated between the parties.
- 3) On 12/22/2025, Wife's attorney filed a declaration asking the Court to appoint the following individuals to perform the following tasks. Wife asked that Husband bear the cost of all three

1 experts' work because he allegedly absconded with \$800,000+ of the community's funds and he
2 can afford to pay for the fees.

3 a. Nick G. Tarlson, CPA to calculate the overall asset / debt division and equalization. Wife
4 stated Mr. Tarlson requires a \$5,000 retainer.

5 b. Fernando Gomez-Martin of Valuadores Profesionales Altenos, SA de CV (VALRPOA)
6 to appraise nine properties in Mexico.

7 c. Martin Santos to appraise three properties in San Francisco.

8 4) On 1/26/2026, the Court issued a Tentative Ruling to appoint Fernando Gomez-Martin and
9 Martin Santos as Evidence Code section 730 experts to perform the tasks requested by Wife.
10 However, the Court tentatively determined it would not be appropriate to appoint Nick Tarlson as
11 an Evidence Code section 730 expert to calculate overall assets / debt division and equalization
12 due to Wife's adversarial theory that Husband misappropriated community funds. The Court
13 tentatively determined it "would not be appropriate for a joint neutral expert to conduct and
14 review discovery to investigate that theory and opine on it," and that Wife could hire Mr. Tarlson
15 has her personal expert.

16 5) At the 1/27/2026 hearing, Wife and her attorney appeared and Husband appeared in pro per.
17 Husband stated he did not review the Tentative Ruling and was not ready to proceed. The Court
18 agreed to continue the hearing to give Husband additional time to hire an attorney, continued the
19 hearing to 3/26/2026 (which was later continued to 5/14/2026 by agreement of the parties), and
20 ordered the parties to meet and confer in advance of the next hearing date.

21 6) On 5/7/2026, Wife's attorney filed an Update Declaration. In addition to reiterating her requests
22 that the Court appoint Fernando Gomez-Martin and Martin Santos as Evidence Code section 730
23 experts, Wife requests that the Court re-consider appointing Nick Tarlson as an Evidence Code
24 section 730 expert. Wife's attorney states: "Having Mr. Tarlson address the issues in this case,
25 including misappropriation of funds is appropriate... because the determination that there is a
26 breach of fiduciary duty is a legal one that only the attorneys can argue. The decision whether
27 there was a breach of fiduciary duty rests firmly with the Court. The only role Mr. Tarlson would
28 have is to objectively and neutrally evaluate records presented by both sides to trace relevant
29 transactions and report back to counsel and the Court. He would not make the ultimate conclusion

1 whether there was a breach of fiduciary duty.” Wife’s attorney states Mr. Tarlson estimated that
2 forensic fees could be between \$20,000 - \$40,000 given the different facets of the case.

3 7) Wife’s attorney states that meet and confer efforts with Husband’s attorney ended in failure.
4 Wife’s attorney states, “He refused to state that his client would make ANY of the payments
5 ordered in November 2025. I asked him about the disclosures and he said he was ‘75%’ done. I
6 have yet to see any disclosures a week later. On April 27, 2026 I presented to counsel the January
7 2026 Citibank and First Federal Credit Union documents attached as exhibits here and asked for
8 confirmation by the end of the week that his client would pay the balances to my client – he never
9 did so. Having 730 experts would force counsel and their clients to promptly comply with
10 document and information requests. But for Husband’s stonewalling, this divorce would have
11 ended long ago. My client is elderly and indigent. She simply wants to get what she is entitled to
12 and move on with her life.”

13 8) On 5/11/2026, Husband’s attorney filed a Status Update. Husband’s attorney states that Husband
14 is working to restore Wife’s health insurance coverage, is working on his financial disclosures,
15 and is preparing a counter-settlement offer to Wife’s settlement proposal. Husband’s attorney also
16 states that the current spousal support and attorney’s fees orders were based on incorrect
17 information and Husband is working to provide accurate and complete information to the Court.
18 Husband states that “the order for payment expert fees was likewise made without proper
19 consideration of Respondent’s actual income and financial capacity and based in part on false
20 information provided by Petitioner.” Husband asks the Court to: (a) continue any currently
21 scheduled hearing to allow the parties adequate time to complete disclosures and finalize
22 settlement discussions; (b) stay the existing spousal support and attorney’s fees order pending
23 further proceedings “as Respondent’s income has not been accurately represented in prior
24 submissions and will be properly reflected in the forthcoming financial disclosures”; and (c) stay
25 any outstanding fees/sanctions payment, to be addressed and resolved at the time of the
26 settlement conference.

27 9) On 5/13/2026, Husband filed a Declaration Regarding Service of Declaration of Disclosure
28 stating that his Preliminary Declaration of Disclosure was emailed to Wife’s attorney on
29 5/13/2026.

1 10) At the prior 5/14/2026 hearing, the Court adopted its Tentative Ruling without objection and
2 ordered the following:

- 3 a. The Court hereby appoints Fernando Gomez-Martin as the Court's Evidence Code
4 section 730 expert to appraise the parties' nine properties in Mexico. Within 10 days of
5 any request by Mr. Gomez-Martin for documents, the parties shall provide such
6 documents to Mr. Gomez-Martin. Effective immediately, all parties must be CC'd on all
7 communications with Mr. Gomez-Martin. The Court authorizes Mr. Gomez-Martin to
8 charge "\$3,000 Mexican Pesos" per property to be appraised. If Mr. Gomez-Martin
9 requires additional fees beyond this amount, the parties may return to Court for this
10 request.
- 11 b. The Court hereby appoints Martin Santos as the Court's Evidence code section 730
12 expert to appraise the parties' three properties in San Francisco. Within 10 days of any
13 request by Mr. Santos for documents, the parties shall provide such documents to Mr.
14 Santos. Effective immediately, all parties must be CC'd on all communications with Mr.
15 Santos. The Court authorizes Mr. Santos to charge \$1,500 per property to be appraised. If
16 Mr. Santos requires additional fees beyond this amount, the parties may return to Court
17 for this request.
- 18 c. Husband shall pay any invoices presented by Mr. Gomez-Martin and Mr. Santos within
19 10 days of receipt of such invoices. The Court's jurisdiction to reallocate the cost of these
20 experts is reserved for trial / final Judgment.
- 21 d. The Court finds that it is premature to appoint Nick Tarlson as an Evidence Code Section
22 730 expert to calculate overall assets / debt division and equalization before Husband has
23 served his Preliminary Declaration of Disclosure, and Wife's request to appoint Nick
24 Tarlson as an expert in this matter is continued to Thursday, 8/13/2026 at 9:00 AM in
25 Dept. 404.
- 26 e. The Court previously ordered Husband to serve his Preliminary Declaration of Disclosure
27 by 12/31/2025. Husband has yet to do so, although his attorney states that it is almost
28 completed. Husband shall serve his Preliminary Declaration of Disclosure forthwith.
29 After Husband serves his Preliminary Declaration of Disclosure, the parties shall

1 continue to meet and confer. If the parties are unable to reach an agreement, at least 20
2 calendar days prior to the next hearing date, both parties shall file updated and fully
3 completed Income and Expense Declarations.

4 f. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
5 update declarations addressing the narrow issue of whether the Court should appoint Nick
6 Tarlson as an Evidence Code Section 730 expert to calculate overall assets / debt division
7 and equalization and how Mr. Tarlson's fees should be paid.

8 g. The Court's jurisdiction to award attorney's fees sanctions due to Husband's failure to
9 serve his Preliminary Declaration of Disclosure by statutorily and Court-provided
10 deadlines is reserved.

11 h. Husband's requests made in his attorney's declaration filed 5/11/2026 to stay the
12 enforcement of any orders requiring payment of spousal support, attorney's fees, and
13 sanctions are denied without prejudice as these issues are not currently before the Court.

14 11) On 7/23/2026, Wife filed an Income and Expense Declaration. Wife states that she is 76 years old
15 and she listed the following sources of monthly income: \$763 in social security retirement and
16 \$750 in real property income. Wife states that she has \$0 in cash and investments and has \$2.8
17 million in real and personal property. Wife states that her monthly expenses total \$3,900 and
18 \$1,250 of this is paid by others (no further explanation provided).

19 12) On 7/27/2026, Husband filed an Income and Expense Declaration. Husband states that he is 79
20 years old and is retired. Husband lists the following sources of monthly income: \$504 in pension /
21 retirement fund payments, \$2,090 in social security retirement, and \$4,900 in rental property
22 income. Husband states that he has \$15,000 in cash. He left the section for investments blank and
23 wrote "unknown" for real and personal property. Husband states that his monthly expenses total
24 \$5,448.

25 13) On 8/3/2026, Wife's attorney filed an Update Declaration asking the Court to appoint Nick
26 Tarlson, CPA, as the Court's Evidence Code section 730 expert to review the following issues:
27 asset / debt division, financial misappropriation, and marital standard of living. Wife's attorney
28 states, "My client is willing to streamline the forensic process by foregoing a business valuation
29 and basing the asset/debt division on the properties and financial accounts alone. This will

1 shorten the time window for forensics and save money.” Wife requests that Husband advance the
2 cost of Mr. Tarlson’s retainer and ongoing fees, subject to reallocation.

3 14) On 8/5/2026, Husband filed a Status Update. Husband asserts, for the first time in this matter to
4 date, that the parties actually separated in March 1993 and he is planning to file an amended
5 Response and propound discovery. Husband states that at the time he signed prior filings in this
6 matter, he did not read, speak, or otherwise understand English, which affected his ability to
7 review and comprehend the contents of those documents. Husband states, “Respondent disputes
8 Petitioner’s valuation of the properties located in Mexico (as set forth in her Schedule of Assets
9 and Debts), and contends the value and income-generating capacity of those properties has been
10 significantly overstated. There is no lease or rental contract, or cattle business, associated with
11 Don Julio or otherwise.” Husband states he is in the process of filing a motion to set aside the
12 support, fee and sanction orders entered on 12/24/2025. Husband states, “Respondent maintains
13 that there has been no misappropriation of funds and that all funds are fully accounted for,
14 including a loan made to Respondent by his daughter and her husband, a portion of which has
15 been repaid, with a remaining balance still owed. Rental income and equity derived from the
16 properties has been used to repay this loan, as well as to pay the mortgage, insurance, taxes, and
17 maintenance and repair costs, and otherwise to support the upkeep of the properties for the last 33
18 years.” Husband further states, “Respondent proposes that the parties participate in mediation
19 rather than engage in extended litigation. Respondent does not have the means to drag this matter
20 out. Respondent does not agree to the appointment of a forensic accounting expert. As alleged by
21 Petitioner, no business exists, and there are no contracts with Don Julio in Mexico. The parties
22 have been separated since 1993, and there is no basis for a forensic business investigation...
23 Respondent agrees that valuations of the real properties are appropriate and is willing to
24 participate in mediation to facilitate resolution of the remaining issues.”

25 **B. Findings and Order**

26 1) The Court does not find good cause to appoint Nick Tarlson, CPA, as a forensic expert in this
27 case at this time for the following reasons. First, there is a dispute regarding the date of separation
28 which must be resolved as an initial matter. Second, the Court is not persuaded that the
29 information Mr. Tarlson may provide cannot be obtained by the attorneys themselves following

1 completion of discovery and / or an informal exchange of documents and information,
2 particularly as Wife has now stated that she is not currently seeking Mr. Tarlson to conduct a
3 business valuation. Wife's request to appoint Nick Tarlson, CPA, as a forensic expert in this case
4 is denied without prejudice to a future request should circumstances change.

5 2) The parties shall continue to meet and confer in good faith.

6 3) Husband's attorney shall prepare the Findings and Order After Hearing.

7 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).